

**INSTRUCTIONS FOR FILING
A PRISONER CIVIL RIGHTS COMPLAINT IN THE
UNITED STATES DISTRICT COURT FOR THE DISTRICT OF HAWAII**

I. General Information About the Civil Rights Complaint Form:

A. The Form

The civil rights complaint form is designed to help prisoners prepare a complaint seeking relief for a violation of their federal civil rights. Your complaint must be typewritten or **legibly** handwritten. All information must be clear and concise, **and written only in the space provided on the form**. If needed, you may attach no more than **fifteen [15] additional pages** of standard letter size paper to continue any part of the complaint. You must identify which part of the complaint is being continued and consecutively number all pages as directed on the form.

B. Your Signature

You must sign and date the complaint. Your signature certifies that: 1) you have read the complaint; 2) to the best of your knowledge, information, and belief formed after reasonable inquiry, it is well grounded in fact and law; and 3) it is not being filed for any improper purpose. Rule 11 of the Federal Rules of Civil Procedure ("Fed. R. Civ. P."), provides for the imposition of sanctions if the complaint is signed in violation of the Rule.

C. The Filing Fee

You must pay the statutory filing fee for when you commence civil action in federal court.

The filing fee for a civil action is currently \$405.00. If you are unable to pay the filing fee when the complaint is filed, you may request leave to proceed in forma pauperis. Please review the "Information for Prisoners Seeking Leave to Proceed with a Civil Action in Federal Court In Forma Pauperis Pursuant to 28 U.S.C. § 1915" for more information. If your in forma pauperis application is granted, the U.S. Marshals' Service will serve your complaint.

If you are denied in forma pauperis status, you will be required to pay the filing fee within a certain amount of time. Failure to do so will result in dismissal of your action without prejudice for failure to prosecute. *See Fed. R. Civ. P. 41(b)*.

Mail the **ORIGINAL AND TWO COPIES** of your complaint with the \$405.00 filing fee or a completed in forma pauperis application to:

**Clerk, U.S. District Court
District of Hawaii
300 Ala Moana Blvd, Room C-338
Honolulu HI 96850-0338**

document returned to you, you must furnish **an additional** copy to the clerk. Otherwise, the Clerk will only return a copy of the **first, file-stamped page** of all other documents you submit (i.e., motions).

G. Exhibits

You should not submit exhibits with the complaint. Instead, the relevant information should be paraphrased in the complaint. You should keep the exhibits to use to support or oppose a motion for summary judgment or for use at trial. You should also not submit original documents, such as letters or birth certificates, as exhibits to your complaint or motions. Original documents are for your records.

H. Change of Address

You must immediately notify the Clerk of Court and the opposing party or their attorney in writing of any change in your mailing address. Failure to notify the court of any change in your mailing address may result in the dismissal of your case.

I. Amended Complaint

If you need to change any of the information in the initial complaint, you may file an amended complaint. The amended complaint must be written on the Court's approved civil rights complaint form. Rule 15 allows you to file *one* amended complaint without leave of court prior to any defendant filing an answer. Fed. R. Civ. P. 15(a). After any defendant has filed an answer, you must file a motion for leave to amend and lodge a proposed amended complaint with the court.

See Fed. R. Civ. P. 16; Local Rule LR10.3. If you seek to file an amended complaint after the Rule 16 scheduling order deadline has passed, you must show "good cause" for your failure to amend within the deadline. After screening your complaint pursuant to 28 U.S.C. § 1915A, the court may also **order** you to file an amended complaint. If so, you need not file a motion to do so, simply file the amended complaint.

An amended pleading must be complete in itself, and cannot reference any prior pleading. Local Rule LR10.3. Any allegations or defendants that are not included in the amended complaint are therefore considered dismissed.

J. Letters and Motions

It is generally inappropriate to write a letter to any of the District or Magistrate Judges, or their staff. The appropriate way to communicate with the court is by filing a written pleading or motion. Refer to the Federal Rules of Civil Procedure and the Local Rules for the United States District Court for the District of Hawaii, when filing a motion, and for any other information.

All motions must be in the form required by the Federal Rules of Civil Procedure and the

Local Rules for the United States District Court for the District of Hawaii. All motions must contain a caption, with the court's name, the motion's title, and the civil file number. *See* Fed. R. Civ. P. 7 & 10. All motions must be signed and must also contain a certificate of service attesting that the opposing party has been served with a copy. *See* Fed. R. Civ. P. 5 & 11.

II. Completing the Civil Rights Complaint Form:

CAPTION:

1. Your Name. Print your name, prison or jail inmate number, and current mailing address.

2. Defendants. Print the names of each of defendant. If you name more than **four** defendants, print the names of the first four on the complaint, then write "see additional page for defendants" underneath. On the additional page, list the names of **all** of the defendants. Insert this additional page after page 1 and number it page "1A, etc." Your complaint must contain the names of **all** of the parties (plaintiffs as well as defendants) in the heading (or on the additional page if there are more than four defendants). *See* Fed. R. Civ. P. 10(a).

3. Jury Demand. If you want a jury trial, write "JURY TRIAL DEMANDED" on the line below "CIVIL RIGHTS COMPLAINT BY A PRISONER." Failure to do so may result in the loss of right to a jury trial. A jury trial is not available if you are seeking only injunctive relief.

Part A. JURISDICTION:

1. Nature of Suit. Mark whether you are filing the complaint pursuant to 42 U.S.C. § 1983 for state, county, or city defendants; "Bivens vs. Six Unknown Federal Narcotics Agents" for federal defendants; or "other." If you mark "other," identify the source of that authority.

2. Plaintiff. Print the requested information on the spaces provided. Identify the institution and city where the alleged violation of your rights occurred.

3. Defendants. Print the requested information about each of the defendants in the spaces provided. If you are naming more than three defendants, you must provide this information about each additional defendant on a separate page. Label the page(s) as "2A, 2B," etc., at the bottom of the page and insert the additional page(s) immediately behind page 2.

Part B. PREVIOUS LAWSUITS:

Identify any other lawsuit you have filed while you were a prisoner. Print all of the requested information about each lawsuit in the spaces provided. If you have filed more than

three lawsuits, you must provide necessary information about each additional lawsuit on a separate page. Label the page(s) as “4A, 4B,” etc., at the bottom of the page and insert the additional page(s) immediately behind page 4.

Part C. CAUSE OF ACTION:

You must identify what rights the defendant(s) allegedly violated. The form provides space to allege three separate counts (one violation per count). If you are alleging more than three counts, you must provide the necessary information about each additional count on a separate page. Number the additional pages “7A, 7B,” etc., and insert them immediately behind page 7. Remember that you are limited to a total of fifteen additional pages.

1. Counts. You must identify which civil right was violated. **YOU MAY ALLEGE THE VIOLATION OF ONLY ONE CIVIL RIGHTS CLAIM PER COUNT.**

2. Issue Involved. Check the box that most closely identifies the issue involved in your claim. **YOU MAY CHECK ONLY ONE BOX PER COUNT.** If you check the box marked “Other,” you must identify the specific issue involved in the space provided.

3. Supporting Facts. After you have identified which civil right was violated, you need to state the supporting facts. Be as specific as possible. You must state what each individual defendant did to violate your rights. If there is more than one defendant, you need to identify which defendant did what act. You also need to state the date(s), or approximate date(s), on which the act(s) occurred if possible. Do not cite to case law or make legal arguments.

4. Injury. State precisely how you are injured by the alleged violation of your rights.

Part D. REQUEST FOR RELIEF:

Print the relief you are seeking in the space provided.

SIGNATURE: You must sign your name and print the date that you signed the complaint. Your signature **must** be an original signature, not a photocopy.

FINAL NOTE

Failure to follow these instructions may result in your complaint being dismissed. Answer all questions concisely in the proper space on the form. If needed, attach no more than fifteen additional pages, numbered as directed on the form. Completely fill in the form to the extent applicable. **Be aware of and comply with these simple rules when completing your complaint form:**

A complaint must contain a caption including the name of the court and the names of all parties. Fed. R. Civ. P. 10(a).

You may assert more than one claim against a single defendant in the same action. Fed. R. Civ. P. 18(a). Each claim against the defendant that is founded upon a separate transaction or occurrence must be set apart as a “separate count.” Fed. R. Civ. P. 10(b).

You may assert claims against *different* defendants in the same action *only if the claims arise from the*

same transactions or occurrences. Fed. R. Civ. P. 20(a).

Your allegations must be short and plain, simple and direct and describe the relief you seek. Fed. R. Civ. P. 8(a).

You must sign the complaint. Fed. R. Civ. P. 11(a).

You are required to obey the court's orders, comply with the local and federal rules, and meet all of your responsibilities in prosecuting this action, like all other litigants. *Ferdik v. Bonzelet*, 963 F.2d 1258 (9th

Cir. 1992); *Pagtalunan v. Galaza*, 291 F.3d 639 (9th Cir. 2002). Failure to do so may result in dismissal of your action, including dismissal with prejudice. *Ferdik*, 963 F.2d 1258.